

STATE OF MICHIGAN
IN THE 14TH JUDICIAL CIRCUIT COURT
COUNTY OF MUSKEGON

Case No. 2025-0000002760-CZ

Hon. Kenneth Hoopes

ANDREW J. PIGORS,

Plaintiff,

v.

SHADY OAKS PARK MHP, LLC,

Defendant.

Filed
7-9-25
w/ order: affidavit

**EMERGENCY EX PARTE MOTION TO STAY EXECUTION OF WRIT OF
EVICITION**

*(Pursuant to MCR 2.614(B), MCR 3.310(A)(1), MCR 2.119(E), and this Court's
equitable and constitutional authority)*

I. JURISDICTION AND EMERGENCY POSTURE

1. This Court has equitable jurisdiction under Const 1963, Art VI, §13, and authority under MCR 2.614(B) and MCR 3.310(A)(1) to stay writs and lower court judgments where due process, jurisdiction, or equity is at risk.
2. Plaintiff seeks an emergency ex parte stay of the Writ of Eviction issued in 60th District Court Case No. 2025-25061626-LT, the execution of which would nullify Plaintiff's Circuit Court claims, foreclose judicial relief, and result in irreparable harm.

II. PROCEDURAL MISCONDUCT AND EQUITABLE BASIS

3. The writ was not lawfully served, in violation of MCR 2.105 and MCL 600.5744(4). No verified officer return was filed and no lawful notice of execution date was ever provided.
4. The underlying lease is void ab initio: signed under coercion, identifying no legitimate landlord party, and executed at Cricklewood MHP under pressure of removal, in violation of Michigan landlord-tenant law.